

Part 2: Pharmacy Laws and Regulations

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Introduction

- **Pharmacy**

- Governed by **laws** and **rules** or **regulations**
- Pharmacy professional practice **standards** and **ethical** principles

- **Why is there so much oversight on pharmacists?**

- Roles** and **responsibilities** of providing medications to nearly **every** member of society
- Guide and ensure the **safe** and **effective** delivery;
 - In **dispensing** prescriptions
 - Providing **drug information** to physicians, nurses, and other HCPs
 - Counseling** and assisting pts with understanding their drug therapy
 - Assisting patients with **selecting** the appropriate **OTC** medications

Introduction...

- Realistic and effective laws and regulations are needed for the pharmaceutical sector because;
 - Pharmaceuticals concern the whole population
 - Many parties involved: Pts, HCPs, manufacturers, salespeople etc..
 - Serious consequences, including injury, and death can result from the lack or misuse of medications
 - The consumer has no way to determine product quality
 - Informal controls are insufficient

What is law??

- Law or statute

- It is both body of **information** and **system** within which that information is used to **resolve conflicts** and **preserve order** within society
- Body of principles that govern conduct & the observance of which can be enforced in courts
- It is the **system** of control (**set of rules**) through which a **society** operates
 - i.e. citizens must obey or suffer penalty

What is law??

- Declares **how we must behave** and consist of those rules which are **enforced** through the legal system particularly the **courts**.
- Are usually **broad** in scope and express the general intent of the legislation.
 - Example: In Ethiopia, pharmacist must be **licensed** or **registered** and meet certain educational requirements to become licensed or registered RPh

What is Regulation??

- Regulation or rules

- Issued by state **administrative agencies** or **regulatory bodies** pursuant to the authority granted to them by the laws or statutes.
- Laws usually do not provide **all of the details** needed to implement the law.

- **For example;**

- Law may not provide details of how registration or licensure is handled by EFDA and the particular requirements for registration or licensure.

What is Pharmacy law???

- It is body of **information** about **drugs, drug distribution, and drug therapy**
 - The information is used by;
 - Legislatures, administrative agencies, and courts of law
 - To assure that **all parties** to whom **responsibilities** have been assigned by society **meet** those responsibilities.
 - The law **defines** a set of **responsibilities** for pharmacists and for others who are formally involved with medication use.

Pharmacy law.....cont'd

- When **adverse** outcomes occur or things **have not gone** well in drug therapy,
 - **Responsibility**
 - **Accountability**
 - A **requirement** that asks **explanation** from the responsible person for his/her **actions**
 - **Liability**
 - If the responsible person or persons providing the accounting **fail** to furnish an **acceptable explanation** for the conduct, then **liability** will be imposed.

Pharmacy law.....cont'd

- **Liability:** is legal recognition that an **acceptable** accounting **was not** provided by a party who was in a position of responsibility when a problem occurred.
- **Health Professional Liabilities**
 - **Civil liability**
 - Arises when an **obligation is not full filled**.
 - **Intentionally** vs **negligent**
 - Ex. a **patient** could claim that he or she was **injured** as a result of a prescription being filled **incorrectly** and may use the violation of the pharmacy law or regulation as part of the professional negligence case.

Pharmacy law.....cont'd

- ***Criminal liability***

- Arises from **doing of an act is done** what the laws prohibit not to do
- **Not to perform an act** when the laws requires to perform

- ***Vicarious liability***

- Liability for the **wrongful acts of others** without ones own fault
 - i.e. acts or omission
 - **Example:** Hospitals are liable for the acts of their medical staff.

Why pharmaceutical Laws and Regulations are necessary?

- **Pharmaceutical law**

- It is a rule of human conduct binding up on all persons engaged in the practice of pharmacy

- It is restrictive like other laws

- Gives certain rights for pharmacists and takes away freedom from it

- The use of ineffective, poor quality or medicines can result;

- Therapeutic failure

- Exacerbation of disease

- Resistance to medicines

- Sometimes result death

- Undermines confidence in health system

Why pharmaceutical Laws and Regulations....

- To protect public health, government need to;
 - Approve compressive laws and regulations and
 - Establish effective national regulatory authority
 - To ensure that the manufacture, trade and use medicines are regulated appropriately and that the public has access to accurate information on medicines
- Pharmacy law protects patients from harm that might occur if medications were used in ways that unreasonably increase the risk of their causing harm.

Why do we need pharmaceutical law?

- To ensure proper implementation of pharmaceutical policy
- To determine the role of pharmacy law executive agency, medical practitioners, pharmacy personnel's, health institutions and consumers in ensuring availability, quality assurance, proper storage, distribution and use of pharmaceuticals
- To ensure that the final consumers receive pharmaceutical of proven safety, quality and efficacy
- To ensure the implementation of the practice in the pharmaceutical sector as to the required standard
- To ensure fair trade of pharmaceuticals

Characteristics of law

- **Certainty**
- **Flexibility:** able to **respond** without undue delay to the challenge of **change** at all levels of minute.
- **Fairness:** The effectiveness of laws depends upon its acceptance by members of society and that will not be available where a law is inequitable, unfair or unreasonable.
- **Accessibility:** All should have access to **knowledge** of the law, either directly or through intermediates.

Role of Laws and Regulations

- Laws and regulations govern virtually all aspects of the practice of pharmacy.
 - Establish **permitted** and **prohibited** conduct for pharmacists, pharmacies, and pharmacy technicians
 - Set the **criteria** that a pharmacy must satisfy to be licensed
 - Establish the pharmacist's **responsibilities** for operating a **pharmacy**, **dispensing** prescription medications, and providing **other** pharmacist **services**
 - Provide for **discipline** and **penalties** for violations
 - Establish the **requirements** for information that must be on the prescription **label**
 - **Control** pharmacy **practice**, **licensure**, and **discipline**

Role of Laws and Regulations...

- However, law and ethics are **not static**
 - Every practitioners, need to remain **alert** throughout their professional life for changes and amendments to each
 - Should be aware of how these will affect and impact on their chosen area of practice.
- **Violations of Pharmacy Laws and Regulations**
 - **Disciplinary** action with an administrative hearing
 - **Civil** court proceeding
 - **Criminal** court proceeding

Distinction Between Health Professional Ethics and Law

- **Ethics**

- It is a scientific discipline by which **our inner self moral values** & character expressed in action
- It is **unenforceable**
- Can be **changed** in to policy statement /**law**
- **Precursor** to the development of legal rules for social order

- **Law**

- Established **social rules for conduct**
- Body of principles that **govern conduct and observance** of which can be enforced in courts
- Demarcates what is permissible from what is not
- Violation of law may cause **civil or criminal liability**
- **Enforceable** : must be followed obeyed and followed by all citizen
 - Subject to legal sanctions or consequences

Relation between law and ethics

- Law and ethics shares the **goal of creating and maintaining social good.**
- Law and ethics are not static: changes and amendments

Sources and Development of Laws and Rules or Regulations

- **Branches of Government**

- **Example:** In Ethiopia
- Federal and regional governments are comprised of three branches:
 - **Legislative,**
 - **Executive, and;**
 - **Judicial**
- Each of these branches has a **different** governmental role

Institutional structure of Ethiopia

- **Legislative** → Make laws
 - House of Peoples' Representatives (HPR)
 - House of Federation (HoF)
- **Judiciary** → Interprets laws
 - Supreme Court
 - High Court
 - First Instance Courts
 - HoF
 - Council of Constitutional Inquiry [CCI]

Institutional structure of Ethiopia...

- **Executive** → Enforces the laws
 - Ministries
 - E.g. **Ministry of Health**
 - Agencies
 - E.g. PFSA , currently become EPSA, ESA
 - Authority
 - E.g. EFMHACA (previous)- EFDA (current)
 - Administration
 - E.g. Emergency Food Security Reserve Administration
 - Board
 - National Electoral Board of Ethiopia
 - Center
 - E.g. Catering and Tourism Training Center

Institutional structure of Ethiopia...

- Commission
 - E.g. Federal Ethics and Anti-Corruption Commission
- Council
 - E.g. National HIV/AIDS Prevention and Control Council
- Fund & Foundation
 - E.g. National Disaster Prevention and Preparedness Fund
- Institute and institution
 - E.g. EPHI
- Office
 - E.g. Ethiopian National Accreditation Office

Administrative Agencies

- **Administrative agencies**

- Also known as **regulatory** agencies
- Are part of the **executive** branch
- **Proposing** and **adopting** rules (regulations)
- **Enforce** rules and regulations through administrative actions

- **Examples**

- Food and Drug Administration (FDA)
 - **Enforces** the Food, Drug, and Cosmetic Act
 - **Issues** regulations

Sources of Ethiopian law

- **Federal Laws**

- FDRE Constitution
- International Treaties
- Codified Laws and Statutes
- Decrees
- Regulations and Directives
- Precedent

- A precedent is a judicial decision, normally recorded in a law report, used as an authority for reaching the same decision in subsequent cases by virtue of the *doctrine of stare decisis*.

Classification of law

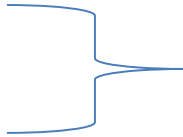
- **Criminal law vs Civil law**

- **Civil Law;**

- More concerned with people's **right** and **obligation**
 - Deals with matters that are considered to be **private** concern between **individuals**.
 - Relates to **issues** or **disputes** between **individuals** or **corporate bodies**

Civil law

- Civil law includes
 - Tort law
 - Commercial law
 - Patent law
 - Trademark law
 - Contract
- Tort law:
 - Subdivision of civil law that deals with **relationship** between individuals created by **law** rather than by the **parties themselves**.



owner of intellectual property

Civil law...

- **Tort: the term that** refers to **personal injuries**
 - A wrong that one citizen commits against another
 - A private inquiry or wrong arising from a **breach** of duty created by law.
 - It may involve **harm** to a person as well as **damage** to a property caused *negligently* or *intentionally*.
- **Negligence: doing something that someone is supposed to do or failing to do something that is supposed to do**
- **Professional negligence: absence of responsible care or skill or willful negligence of a medical practitioner in the treatment of patient which causes bodily injury or death of a patient**

Civil law...

- **Negligent torts:**

- Arise because the person doing the act breached a duty or level of care expected of him.

- **Elements of negligence**

- A legal cause of action for negligence has 4 elements

- Duty of care

- Breach of duty

- Causation: any damage was caused by breach of duty

- Damage: lost wages, medical expenses etc..

- **Intentional torts:**

- Actor does **purposefully** or with an **intention** of achieving a desired result

Civil law...

- **Contract law:**
 - **Contract:** a binding agreement between two parties that may be individual, companies or state.
 - Promise or a set of promises for the breach of which the law provides a remedy, or the performance of which, the law in some way, recognize as **duty**.

Civil law....

- **Contract is valid only when (Art. 1678);**
 - The agreement between the parties, which form the basis for the contract, is composed of both an **offer** and an **acceptance**.
 - For an offer to be **legally** sufficient the party making it must have **the intention of entering** in to an agreement with the other party.
 - An offer must be **definite** and **detailed**.
 - Parties** entering into contract must be competent **legally** to do so.
 - Each party must have contractual capacity.

Civil law...

- The parties are capable of contracting and give their consent **sustainable at law**
- The **object** of contract is sufficiently defined and is possible and **lawful**.
- The contract is made in the form **prescribed** by the law if any
- **Art 1682 silence I principle**
 - Silence where an offer is made shall not amount to **acceptance**

Civil law...

- Patent law:

- **Patent:** an **exclusive right** granted by government to exploit an **invention**.
- Globally, an owner of intellectual property rights like trademark, patent, industrial designs...etc shall take all the necessary safeguard means of protecting them.
- The same is true for Ethiopia

- Trademark law

- **Trademark:** a product trade name and a description of its package, which a producer likely to register in countries where the product is being distributed.

Criminal Law/ Penal law

- **Criminal law;**

- Relates to **maintaining social order** and protecting the community as a whole.
- It pertains to **crimes** and **punishment**.
- If these laws are **broken** the individual concerned can be **arrested** and **prosecuted** by representatives of the **state** through the criminal judicial system.
- The **penalties: fines** and **imprisonment**.

Criminal law/ Penal law...

- **What is crime?**

- Art 23: an **act** or **omission** which is **prohibited** /**required** by the law.

- In criminal law an **accused** individual is presumed to be **innocent** until proven to be guilty.

- Criminal offence** is only completed when the **legal, mental and material** elements are present.

- Legal** : an act prohibited or required

- Material**: there should be **positive act** or **omission**

- E.g intention to kill Mr “X” using a gun.

- Do not considered as a crime

- Mental**: intentional or negligent

Comparison of civil and criminal law

- **Civil law**

- **Purpose** :- compensation
- **Type of evidence**:- preponderance or (50+) evidence to be held liable

- **Criminal law**

- **Purpose**: - deterrence, retribution, educate and reform offender, and prevention of further crime.
- **Type of evidence**:- beyond reasonable doubt (100% evidence)

International Pharmaceutical Related Regulations

Drug Regulation

- The history of **drug regulation** parallels the history of major **ADRs “disasters”**
- Mid-1800s
 - Congress began **legislative** efforts to control the quality of drugs in USA
- Modern medicines regulation started only after breakthrough progress in the 19th century life sciences which laid a solid foundation for the modern drug research

Drug Regulation...

- **Drug importation act of 1848**

- To control import of adulterated medicines

- Prevented **importation** of adulterated drugs from other countries into the USA.

- Unfortunate events have catalyzed the development of medicines regulation more than the evolution of a knowledge base

Pure Food and Drug Act of 1906

- Result of concerns about public health and safety
 - Targeted adulteration and misbranding
 - **Unsafe** and **poorly labeled** drug products
 - Prohibit distribution of **adulterated** and **misbranded drugs** and **food** products
 - Manufacturers were required
 - To put **truthful** information on the label before selling the drug
 - To prove their drug's **effectiveness**

Harrison Narcotic Act of 1914

- Enacted because of the excessive number of **opium addicts** in the United States
- People could no longer obtain opium **without a prescription**

Food, Drug and Cosmetic (FDC) Act of 1938

- **1937 –Elixir of Sulfanilamide**

- Liquid form of Sulfanilamide produced using **diethyleneglycol** as solvent
 - Diethyleneglycol = Antifreeze
- Administered to **mostly children** to treat streptococcal infections.
- Existing laws did not require any kind of pharmacological studies demonstrating that a drug is **safe**.
- 107** people died.
 - Facilitated introduction of the FDC Act with the premarket notification requirement for new drugs in 1938
 - Earlier Food and Drug Act was not worded strictly enough and did not include **cosmetics**

FDC Act of 1938...

- Extended control to **cosmetics** and therapeutic **devices**.
 - Brought medical devices and cosmetics under FDA control
- **Required;**
 - New drugs to be demonstrated **as safe before marketing**.
 - Eliminated requirement to prove intent to **defraud in drug misbranding** cases (fraudulent claims).
 - Premarket clearance for safety
 - Provided **standards** and safe **tolerances**
 - **Authorized** factory inspections

Durham-Humphrey Amendment of 1951

- Also known as “**Prescription Drug Amendment**”
- Defined the modern practice of pharmacy
- **Required;**
 - Certain **drugs** to be dispensed only pursuant to a **prescription**
 - Made the initial distinction between
 - POM and OTC medications
 - Any **refills** be authorized either in the original prescription or by the prescriber
 - Made certain drugs require **a doctor's order** and supervision

Thalidomide Crisis-1961

- Hailed as a wonder drug for **sleeplessness**.
- Relieved many **morning sickness** symptoms in pregnant women
- Introduced in 46 different countries worldwide resulting in an estimated 10,000 babies being born with phocomelia and other deformities
- Unknown that thalidomide crossed the **placental wall**.

Thalidomide Crisis-1961

- **Catastrophic results of Thalidomide:**

- Peripheral neuritis –nerve disorder

- Birth defects

- Deafness, blindness, disfigurement

- Cleft palate, internal defects, phocomelia

- The role of this disaster in shaping the medicines regulatory systems is not hard to underestimate

Figure : Picture showing Thalidomide tragedy



Thalidomide Crisis-1961...

- Australian obstetrician (**William McBride**) posed a question to “The Lancet” about the possible correlation between thalidomide and birth defects.

Thalidomide and congenital abnormalities

Sir, --- Congenital abnormalities are present in approximately 1.5% of babies. In recent months I have observed that the incidence of multiple severe abnormalities in babies delivered of women who were given the drug thalidomide (Distaval) during pregnancy, as an antiemetic or as a sedative, to be almost 20%.

These abnormalities are present in structures developed from mesenchyme - i.e., the bones and musculature of the gut. Bony development seems to be affected in a very striking manner, resulting in polydactyly, syndactyly, and failure of development of long bones (abnormality short femora and radii).

Have any of your readers seen similar abnormalities in babies delivered of women who have taken this drug during pregnancy?

W.G. McBride Hurstville, New South Wales

The Lancet December 16, 1961 Letters to the Editor

Kefauver-Harris Amendment of 1962

- Prompted by the thalidomide disaster of 1962
- Also known as drug efficacy amendments
- Focused on accountability from drug manufacturers for the effectiveness of drugs
- Established procedures for new drug applications

Kefauver-Harris Amendment of 1962...

- Enacted in an attempt to ensure the **safety** and **effectiveness** of all **new drugs** on the market
 - Drug Manufacturers were required to prove **drug effectiveness and safety to FDA before marketing.**
 - Advertisements must show complete info **on benefits and risks**
 - Adverse effects must be reported to the FDA
 - Since 1962, **thousands of drugs have been removed** from the market because of these amendments
 - Prevented the sale of thalidomide in the USA

Orphan Drug Act of 1983

- Defined orphan drugs
 - Drugs that have little or no commercial value (rare diseases)
- Intended to stimulate the development of drugs for rare diseases
- Encourage drug manufacturers to research and develop drugs
 - To treat **rare diseases**
 - Disease that affects 1 in every 200,000 people
 - Because R and D **costly** and **uncertain profitability**
 - Encouraged their manufacture by giving companies exclusivity and tax relief

Orphan Drug Act of 1983....

- The **law** gives drug companies **incentives** to R and D
 - E.g., Tax credits for clinical testing and specific years after FDA approval to exclusively market the drug.
- **Examples**
 - Rare diseases -huntington's disease
 - Orphan drug - is epogen® (erythropoietin)

Drug Price Competition and Patent Term Restoration Act of 1984

- Also called the **Hatch–Waxman Act**
- Established modern system the so called “**Generic drugs**”
- The law allows an accelerated process for FDA approval of **generic drugs**
 - Avoid requiring generic **drug manufacturers to repeat** the research required for approval of the brand drug product.
 - Required to the generic **drug is therapeutically equivalent** to an already FDA approved brand drug.

Prescription Drug Marketing Act of 1987

- Enacted to address certain prescription drug marketing practices
- Controlled the use of drugs in **animals**
 - Required the labeling
 - “Caution: Federal law restricts this drug to use by or in order of a **licensed veterinarian**”

Anabolic Steroids Control Act of 1990

- Helped stiffen regulation on the abuse problems of **anabolic** steroids and their misuse by athletes
- Placed anabolic steroids into schedule III of the controlled substances act
- **Amends the Controlled Substances Act to:**
 - Establish penalties for physical trainers or advisers who endeavor to persuade or induce individuals to possess or use anabolic steroids;
 - Add anabolic steroids as a schedule III substance under such Act; and
 - Define "anabolic steroid" as 'any drug or hormonal substance that promotes muscle growth in a manner pharmacologically similar to testosterone, including specified substances.'

1990 Omnibus Budget Reconciliation Act (OBRA 90)

- Deals specifically with practicing pharmacists
- Enacted because of **reimbursement** regulations
 - For people who are covered under **Medicaid** or Medicare Insurance
 - Mandated the pharmacists preform drug utilization review and other counseling to patients
 - States that a pharmacist **must counsel** (at the time of purchase) all patients who receive new prescriptions
 - Its name, when to take it
 - how long to take it,
 - SE and possible interactions

Narcotic Drugs and Psychotropic Substances Act

- **Narcotic drugs**
 - Are classified and placed under international control by the **1961** UN Single Convention on Narcotic Drugs
 - limits '**exclusively** to **medical** and **scientific** purposes the production, manufacture, export, import, distribution of, trade in, use and possession of drugs' (art. 4c)
 - Classifies narcotic drugs in four Schedules

Narcotic Drugs and Psychotropic Substances Act...

- **Psychotropic substances**
 - Are placed under international control by the **1971** UN Convention on Psychotropic Substances
 - **limit** the use of these substances to **medical** and **scientific** purposes (arts. 5 and 7)
 - While some psychotropic substances may have therapeutic value, they also present a dangerous risk of abuse
- The annex to the 1971 UN Convention on Psychotropic Substances also classifies substances in four Schedules:

Narcotic Drugs and Psychotropic Substances Act...

- **Schedules I**
 - Substance has a **high potential for abuse**
 - Substance has **no currently accepted medical** use
 - There is **lack** of accepted safety for use of the substance under medical supervision
 - **Examples:** heroin, LSD, Marijuana , methaqualone

Narcotic Drugs and Psychotropic Substances Act...

- **Schedules II**

- Substance has **high** potential for abuse
- Substance **has currently accepted medical** use in treatment or a currently accepted medical uses with **severe restrictions**
- Abuse of the substance may lead to severe **psychological** or **physical** dependence
- **Examples:** morphine, PCP, cocaine, methadone, methamphetamine

Narcotic Drugs and Psychotropic Substances Act...

- **Schedules III**

- Substance has a **potential** for abuse less than those in Schedules I and II
- Has currently **accepted** medical use in treatment in the U.S.
- Abuse may lead to **moderate** or **low** physical dependence or **high psychological** dependence
- **Examples:** anabolic steroids, codeine & hydrocodone with aspirin or Tylenol, some barbiturates

Narcotic Drugs and Psychotropic Substances Act....

- **Schedules IV**
 - The substance has a **low** potential for abuse relative to those in Schedule III
 - Has a currently **accepted** medical use in treatment
 - Abuse may lead to **limited physical** dependence or psychological dependence relative to those in Schedule III
 - **Examples:** Diazepam

Poisons Act of 1970

- The law requires that hazardous products
 - Household cleaners
 - Furniture polish
 - Prescription drugs
 - OTC drug products
- Addresses the issue of **accidental** poisoning of children
- Should be sold in **child-resistant packaging**
 - prevent children from opening the package
 - but allow adults to open the containers without difficulty.

Convention against Doping in Sport UNESCO

- The convention
 - Is a non-government document
 - Applies **only** to members of **sports** organizations
 - in order to provide an **honest** and **equitable** playing **environment** for all athletes
- Doping;
 - Defined as the occurrence of one or more of the anti-doping rule **violations** set forth in Article 2.1 through article 2.8 of the World Anti-Doping Code.”

Prohibited List World Anti-doping Code...

- **Substances prohibited at all times (in- and out-of-competition)**
 - **S1 Anabolic Androgenic Steroids (AAS)**
 - e.g. nandrolone; testosterone (exogenous and endogenous AAS)
 - e.g. others such as clenbuterol
 - **S2 Peptide hormones, growth factors and related substances**
 - e.g. **erythropoietin (EPO)**; growth hormone
 - **S3 Beta-2 agonists**
 - all beta-2 agonists are prohibited except
 - salbutamol (maximum 1600 micrograms over 24 hours) and
 - salmeterol when taken by inhalation in accordance with the manufacturers' recommended therapeutic regime.
 - **S4 Hormone antagonists and modulators**
 - **S5 Diuretics and other masking agents**

Prohibited List World Anti-doping Code...

- **Methods prohibited at all times (in- and out-of-competition)**

- M1 Enhancement of oxygen transfer**

- e.g. blood doping; blood or red blood cell products; haemoglobin-based blood substitutes

- M2 Chemical and physical manipulation**

- e.g tampering with samples; urine substitution; sequential withdrawal, manipulation and reinfusion of whole blood

- M3 Gene doping**

Prohibited List World Anti-doping Code...

- **Substances prohibited in-competition**
 - **S6 Stimulants***
e.g. amphetamine, adrenaline; ephedrine, pseudoephedrine (with some exceptions/thresholds)
 - **S7 Narcotics**
e.g. buprenorphine, diamorphine, methadone, morphine
 - **S8 Cannabinoids**
Natural (e.g. cannabis, hashish, marijuana) or synthetic delta 9 THC
- **Substances prohibited in particular sports**
 - **P1. Alcohol**
Alcohol (ethanol) is prohibited *In-Competition only, in the certain sports*,
e.g. archery (FITA); motorcycling (FIM)
 - **P2 Beta-blockers**
Beta-blockers are prohibited *In-Competition only*

Commercial Law

- **Commercial Law**: business, contract, agency, private product ownership, insurance plans and antitrust, advertising, etc.
 - ***Reading assignment!!!!***
- **Read Proclamation No. 686/2010** Commercial Registration and Business Licensing

Commercial Law

- Profit making businesses organized
 - ***Sole proprietorship***
 - Owned by one individual
 - Most common business form
 - ***Partnership***
 - Owned by two or more individual in accordance with a contractual agreement
 - ***Corporation***
 - Organized in accordance with state or federal statutes,
 - Separate legal entity in which ownership is divided into shares of stock
 - Most dominant form in terms of dollars and business activity

Medical legislation in Ethiopia

Historical Development of Modern medical profession and Medical legislation in Ethiopia

- Modern medicine introduced to Ethiopia in the year 1521
 - During the reign of king **Libnedingle**.
 - Diplomat, missionaries, traders, warriors
- The first **medical legislation**
 - The 1930 medical legislation to the **medical professionals and allied** members of the profession.
- Separate **Ministry of Health** was established in **1948**

Historical Development of Modern medical profession...

- The **1948 pharmacists** and **druggists** registration proclamation
- **Proclamation No 176/ 1999**
 - Pertaining drug administration and control(DACA)
 - Already **repealed**
- **Proc. No 66 I/2009**
 - Proclamation to provide for Ethiopian Food, Medicine, Healthcare Administration and Control Authority (EFMHACA)

Historical Development of Modern medical profession...

- **Proc . No 1112/2019**
 - To provide Ethiopian Food and Drug Authority (EFDA)
 - Currently under implementation
- **Regulation No 76/2002**
 - Regarding **health professionals council** establishment

Laws pertaining to health professionals

- Relevant provisions to the health professionals
 - Criminal code of Eth. Proc.No 414/2004
 - Civil code of Eth. Proc. No, 165/1960
 - Directives the authority shall issue to the implementation

Health professionals contd.

- Ethiopian health professional council establishment Reg.no 76/2002.
 - Art.16. endowed with the **power** and duties to the **professional ethics sub committee**
 - To investigate complaints logged on the **none** observance of professional **ethics** .
 - If found sufficient evidence...
 - Art.23. any health professional who violates this regulation or directives on health professional ethics shall be **suspended** or **cancelled**

Health professionals contd.

Reg. 76/2002 Art 24 .(I) Endowed with discretionary power to the minister

- Grounds for **suspension**
 - (I) Performing health profession without **registration** or renewing **license**
 - **(2) Employing** a health professional whose **license** has been suspended
 - (3) Until a court or a council decision is passed

Health professionals contd.

- Grounds for **cancellation**- Art.24 (4)
 - a) when proved that the license is acquired through **fraudulent** document
 - (b)When the professional convicted for a **serious crime** / one has **no adequate competence**
 - (b)If **deliberately** working above ones capacity in contravention to ethics of the profession
 - (b)If render health services in return for **illegal benefit** while suspended and in contravention of written notice & decision of suspension.

Health professionals contd.

- (5) If service is terminated due to suspension or cancellation ..
 - The registry shall be **open to the public** &
 - It shall be **published in a state owned news paper**
- Eth . Penal code Art. 69: professional duty:-
 - An act done in the exercise of a professional duty is not liable to punishment when it is in **accordance** with **accepted** practice of the **profession** and the doer does not commit any **grave fault**.

Health professionals contd.

➤ Art. 399 . Of the penal code .

✓ Breach of **professional secrecy /confidentiality/**

➤ Doctors , dentists, pharmacists and auxiliary medical personnel who disclose a secret..

Art. 400 Authorized **disclosure**

(a) Where it is made with the express **consent** of the person

(b) Where at the **suggestion** or **request** of the possessor

(c) Where it is made an express **decision** of a court

(d) in the interests **of public order**

Unlawful exercise of the medical or public health professions

➤ Art.535

❖ (1) who ever ,having neither the professional qualification prescribed and controlled by the authority nor authorize to practice or by exceeding his...

- Is punishable with simple imprisonment not exceeding one year or with rigorous imprisonment not exceeding five years